Record of Beneficiary Vote for Election of Successor Trustees

Flanagan Pine Branch Trust
Property: 321 Phillips Way, Ellsworth, ME 04605 (Branch Lake)
Deed Reference: TR 31 PG 07 PC 10
Settlor: Dorothy E. Flanagan (deceased), Ellsworth, Maine
Date of Trust Agreement: 2005

I. Purpose of Vote

Pursuant to Article 10.2 of the Flanagan Pine Branch Trust Agreement, upon the resignation of both initial Co-Trustees, Jane Elizabeth Birckhead and Elizabeth Mary Young, the successor Trustee or Trustees shall be elected by a majority of the beneficiaries.

This vote is conducted after the resignations have become effective to elect Successor Co-Trustees. The resignations of Jane Elizabeth Birckhead and Elizabeth Mary Young are attached hereto as supporting documents. Before this vote, Elizabeth Mary Young also signed her acceptance of the special one-week Limited Use Right Agreement. That pre-election acceptance did not make her beneficial-interest forfeiture effective before this vote, and she remains one of the five beneficiaries eligible to vote below.

II. Eligible Voters

Article 10.2 requires a majority vote of the beneficiaries. The Settlor's five (5) living children constitute the beneficiaries eligible to vote:

1. Mary Jean Foss
2. John Michael Flanagan
3. Jane Elizabeth Birckhead
4. Elizabeth Mary Young
5. Christopher Joseph Flanagan

A majority requires at least three (3) of the five (5) eligible beneficiaries to vote in favor.

III. Nominees for Successor Co-Trustees

The following individuals have been nominated to serve as Successor Co-Trustees of the Flanagan Pine Branch Trust:

John Michael Flanagan
Christopher Joseph Flanagan

IV. Date and Method of Vote

Date of Vote: _____, 2026

Method: (check one)

[ ] In person
[ ] By telephone conference
[ ] By written ballot (mail or email)
[ ] Combination of methods

V. Record of Individual Votes

Each beneficiary's vote is recorded below. A vote of "In Favor" indicates approval of both John Michael Flanagan and Christopher Joseph Flanagan as Successor Co-Trustees.

1. Mary Jean Foss

Vote: [ ] In Favor [ ] Opposed [ ] Abstain

Signature: _____

Date: _____

2. John Michael Flanagan

Vote: [ ] In Favor [ ] Opposed [ ] Abstain

Signature: _____

Date: _____

3. Jane Elizabeth Birckhead

Vote: [ ] In Favor [ ] Opposed [ ] Abstain

Signature: _____

Date: _____

4. Elizabeth Mary Young

Vote: [ ] In Favor [ ] Opposed [ ] Abstain

Signature: _____

Date: _____

5. Christopher Joseph Flanagan

Vote: [ ] In Favor [ ] Opposed [ ] Abstain

Signature: _____

Date: _____

VI. Results

Total In Favor: _____
Total Opposed: _____
Total Abstain: _____

Majority Required: 3 of 5

Result: (check one)

[ ] APPROVED -- A majority of the beneficiaries have elected John Michael Flanagan and Christopher Joseph Flanagan as Successor Co-Trustees of the Flanagan Pine Branch Trust, effective upon their acceptance below.

[ ] NOT APPROVED -- The nomination did not receive the required majority.

VII. Acceptance by Successor Co-Trustees

We, the undersigned, having been duly elected by a majority of the beneficiaries pursuant to Article 10.2 of the Flanagan Pine Branch Trust Agreement, hereby accept the appointment as Successor Co-Trustees. We agree to be bound by all terms of the Trust Agreement and acknowledge that, pursuant to Article 8.2, the concurrence and joinder of both Co-Trustees shall be required for all matters pertaining to the administration of the Trust.

John Michael Flanagan, Successor Co-Trustee

Signature: _____

Date: _____

Address: _____

_____

Christopher Joseph Flanagan, Successor Co-Trustee

Signature: _____

Date: _____

Address: _____

_____

VIII. Certification

I certify that this Record of Beneficiary Vote accurately reflects the vote conducted on _____, 2026, and that all eligible beneficiaries were given proper notice and opportunity to participate.

Certified by: _____

Print Name: _____

Date: _____

IX. Supporting Documents

The following documents are attached to or accompany this Record of Vote:

1. Resignation of Trustee -- Jane Elizabeth Birckhead (dated _____)
2. Resignation of Trustee -- Elizabeth Mary Young (dated _____)
3. Copy of the Flanagan Pine Branch Trust Agreement (2005)
4. Notice of Vote sent to all beneficiaries (dated _____)

X. Notary Acknowledgement

STATE OF _____

COUNTY OF _____

On _____, 2026, before me, _____ (Notary Public), personally appeared the individuals whose signatures appear above, who proved to me on the basis of satisfactory evidence

to be the persons whose names are subscribed to the within instrument and acknowledged to me that they executed the same in their authorized capacities.

I certify under PENALTY OF PERJURY under the laws of the State of _____ that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature: _____ (Seal)

My Commission Expires: _____